

Justices question states' oil litigation

They suggest federal law may block local climate change claims against energy firms.

By David G. Savage

WASHINGTON — The Supreme Court justices sounded wary Monday of state-by-state lawsuits that could impose huge damage verdicts on energy producers for the effects of global climate change.

Instead, several of them suggested these local and state claims may be blocked by the federal Clean Air Act.

“Interstate air and water pollution are matters for federal law,” said Justice Brett M. Kavanaugh. “We don’t have to reinvent the wheel. This kind of pollution is a federal matter unless Congress says otherwise.”

Justice Elena Kagan appeared to agree. State-by-state lawsuits “really get in way of how Congress decided to regulate greenhouse gases,” she said.

Justice Amy Coney Barrett questioned if states such as Colorado can use their courts to impose regulations on other states. “What if Colorado passed a law purporting to cap emissions in the other 49 states?” she asked.

At issue before the court was the question of whether cities and states may sue oil and gas producers for the damages inflicted by climate change.

California and nearly three dozen states and municipalities have filed such claims, but none have gone to trial. Meanwhile, the Republican-led states and the Trump administration opposed these lawsuits.

The eight justices struggled Monday to decide if these lawsuits are a matter for state or federal law.

Justice Samuel A. Alito, a staunch conservative, said he is sitting out the case, presumably because he owns stock in oil companies that would be affected by a ruling.

Without him, the court could split 4 to 4 and be unable issue a decision.

That remains a possible outcome, but Monday’s argument kept open the prospect that a conservative majority will rule to block the climate change suits.

Last year, the Colorado Supreme Court ruled that Boulder County may sue for damages in a local court. In a 5-2 ruling, the state judges said Boulder could sue and seek damages by alleging



FANS ENDURE triple-digit heat Saturday at the playoff game between the Dodgers and the Atlanta Braves.

What befell Santa Monica?

Why the city struggles as Beverly Hills and Culver City thrive

By Salvador Hernandez

A decade ago, Santa Monica was one of California’s economic powerhouses.

Its office parks were home to top entertainment firms. Its beaches and pier were huge tourist draws. And its downtown area boasted a lively mix of high-end retailers and restaurants that made it a regional shopping and entertainment destination.

But the last six years have brought unprecedented struggles to Santa Monica.

A new Rand Corp. study found Santa Monica’s economic struggles began before the pandemic, though COVID-19 worsened them considerably. Although the pandemic brought economic challenges across the country, the study reveals that Santa Monica struggled more than its neighbors, such as Beverly Hills, Cul-

ver City and West Hollywood.

A dramatic exodus of retailers left noticeably empty storefronts at the city’s once-popular shopping centers, and worries about public safety and homelessness plagued the city.

The report found that more than 11% of Santa Monica’s retail space is currently empty, and that about 45% of those empty spaces are in Third Street Promenade and Santa Monica Place.

By comparison, West Hollywood’s retail vacancy rate is 9.2%, and Beverly Hills’ is 6%. In Culver City, 5.2% of retail space is empty.

“Santa Monica’s retail sales revenue never fully recovered to pre-pandemic levels,” the report reads. “This decline occurred in nearly every type of business, though the magnitude varied substantially by business type.”

Santa Monica City Manager Oliver Chi said the Rand report accu-

rately portrays the city’s recent financial woes, and some of the steps it has taken to address them.

“It matches what we saw,” Chi said, adding that the issues highlighted in the report are what prompted the city to launch a realignment plan to turn around the city’s economic outlook. “For the city, we had to decide: Are we going to manage decline, or are we going to more progressively address the moment?”

AJ Sacher, director of operations at Barney’s Beanery, said businesses that have stayed in Santa Monica over the years have seen the struggles build up. For Sacher and other business operators, there’s been concern that services, upkeep and maintenance in the promenade and downtown area have been ignored.

“There’s a lack of investment in the area,” Sacher said. “People don’t want to be in an environment that is

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Yemen forces ramp up attacks on rebels

Saudi-led campaign against Iran-backed fighters marks sharp escalation

By NABIH BULOS

BEIRUT — Yemen’s embattled government and a Saudi-led coalition have launched a major campaign aimed at dislodging Iran-backed Houthis who had recently seized vital parts of Yemen’s Red Sea coast.

The offensive, which had already reclaimed territory overlooking a key waterway, marks a sharp escalation in what thus far been an ancillary conflict in the wider U.S.-Israeli war on Iran.

In a televised address Sunday evening, Rashad al-



AHMAD AL-BASHA AFP/Getty Images

YEMENI government soldiers, part of the Saudi-backed coalition, gather outside the city of Taiz.

Alimi, head of the Yemeni government’s Presidential Leadership Council, announced a military operation to “extend the authority of the state and its institutions over the entire national territory.”

The operation would continue, he said, “until the country is liberated from the control of terrorist militias.”

The campaign comes almost a month after a blitzkrieg offensive by the Houthi rebels saw Saudi-backed government forces collapse in disarray and give up wide swaths of territory

[See Yemen, A4]

Restaurant workers facing hidden dangers

Gas stoves and ovens give off harmful levels of heat and pollution, California study finds.

By Tony Briscoe

Restaurants with gas stoves and ovens are exposing workers to harmful air pollution and unsafe levels of heat, according to a new study led by California researchers.

PSE Healthy Energy, an Oakland nonprofit and Stanford University researchers measured pollution levels and temperatures inside 27 commercial kitchens — 24 with gas cooking appliances and three fully electric.

They found 70% of kitchens with gas had lung-irritating nitrogen dioxide above federal benchmarks during work hours. Scientists also monitored temperatures in 19 of the gas-fired kitchens, and 13, or 68%,

reached over 90 degrees. That is above a federally proposed high-heat trigger. The research was published Tuesday in the journal Environmental Research Letters.

None of the restaurants with all-electric kitchens had excessive pollutants or heat.

In California, the restaurant industry is a pillar of the economy. But few scientific studies have characterized the taxing conditions inside these workplaces.

The new findings underscore serious health risks faced by many of the 1.8 million people who work in food service statewide.

“It’s certainly no secret to folks working in commercial kitchens that these are intense environments full of heat and pollution,” said Yannai Kashtan, an air quality scientist with PSE Healthy Energy.

“But I think this study’s big contribution is [detailing] the kinds of exposures

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AI prescribes medication in Utah minus doctor

By Annika Inampudi

An AI-based healthcare startup on Monday began offering prescriptions to Utah patients without direct human oversight, the first time a state has allowed such technology to replace the role of a doctor.

The move, limited to acne medications, sets the stage

for a new era in healthcare in which artificial intelligence takes on a larger role in routine medical care. It also comes months after the state’s efforts to expand the role of AI in healthcare via its pilot program drew scrutiny and anger among doctors.

When patients first sign up for Nolla Health’s app, they are instructed to use it to scan their face. Then,

rather than being examined by a doctor, patients complete their medical history and personal information. Nolla Health’s AI software analyzes their skin, identifies the acne problem, rates the skin’s oiliness and then generates a numerical “acne severity score” that ranges between clear skin and severe acne.

After combining the AI-

generated score with personal medical information, the app will recommend medication from a list of eight approved treatments that would typically get reviewed and prescribed by a clinician.

In Utah, the pilot — aimed at the state’s estimated 5,500 to 11,000 acne patients who seek dermatology

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